

THOMAS, J., concurring

liberty if the power of judging be not separated from the legislative and executive powers’”).

In sum, my view of *stare decisis* requires adherence to decisions made by the People—that is, to the original understanding of the relevant legal text—which may not align with decisions made by the Court. Accord, *Marshall v. Baltimore & Ohio R. Co.*, 16 How. 314, 343–344 (1854) (Daniel, J., dissenting) (“Wherever the Constitution commands, discretion terminates” because continued adherence to “palpable error” is a “violation of duty, an usurpation”); *Commonwealth v. Posey*, 8 Va. 109, 116 (1787) (opinion of Tazewell, J.) (“[A]lthough I venerate precedents, I venerate the written law more”). Thus, no “‘special justification’” is needed for a federal court to depart from its own, demonstrably erroneous precedent. *Halliburton Co. v. Erica P. John Fund, Inc.*, 573 U. S. 258, 266 (2014); see Nelson 62. Considerations beyond the correct legal meaning, including reliance, workability, and whether a precedent “has become well embedded in national culture,” S. Breyer, *Making Our Democracy Work: A Judge’s View* 152 (2010), are inapposite. In our constitutional structure, our role of upholding the law’s original meaning is reason enough to correct course.⁶

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Although precedent does not supersede the original meaning of a legal text, it may remain relevant when it is not demonstrably erroneous. As discussed, the “judicial Power” requires the Court to clarify and settle—or, as Madison and Hamilton put it, to “liquidate”—the meaning of writ-

⁶I am not suggesting that the Court must independently assure itself that each precedent relied on in every opinion is correct as a matter of original understanding. We may, consistent with our constitutional duty and the Judiciary’s historical practice, proceed on the understanding that our predecessors properly discharged their constitutional role until we have reason to think otherwise—as, for example, when a party raises the issue or a previous opinion persuasively critiques the disputed precedent.